IN THE HIGH COURT OF JUSTICE
BUSINESS AND PROPERTY COURTS OF ENGLAND AND WALES
TECHNOLOGY AND CONSTRUCTION COURT (KBD)

Claim No. HT-2025-000219

B E T W E E N:

BRAMPTON LEISURE LIMITED
(company number 04417823)

Claimant

- and -

HARTWELL CONSTRUCTION LTD
(company number 07731902)

Defendant

PARTICULARS OF CLAIM

The parties

1. The Claimant is a company incorporated in England and Wales which owns and operates a chain of premium health and fitness clubs trading as "The Vault". The Claimant is a wholly-owned subsidiary of Kingsford Group Limited.
2. The Defendant is a company incorporated in England and Wales which carries on business as a building and fit-out contractor.

The Contract

3. By a contract in writing dated 9 January 2023 incorporating the JCT Design and Build Contract 2016 with bespoke amendments ("the Contract"), the Claimant engaged the Defendant to design and construct the fit-out and mechanical and electrical installation of a flagship health and fitness club known as "The Vault Birmingham" at 118 Broad Street, Birmingham B15 1AU ("the Works").
4. The Contract Sum was £6,180,000 exclusive of VAT. The Date for Completion was 23 February 2024.
5. It was an express term of the Contract that the Defendant would:
   (a) carry out and complete the Works in a proper and workmanlike manner and in accordance with the Contract Documents (clause 2.1);
   (b) in respect of its design of the Works, have the like duty of care and skill as would be expected of a competent professional designer experienced in carrying out work of a similar nature, scope and complexity (clause 2.17); and
   (c) ensure that the Works as completed complied with the Employer's Requirements, including the pool water-treatment and ventilation performance criteria set out at Sections M3 and M4 thereof.
6. Further or alternatively, the following terms were to be implied into the Contract by section 13 of the Supply of Goods and Services Act 1982 and/or at common law: that the Defendant would carry out the Works with reasonable skill and care; and that materials and goods supplied would be of satisfactory quality and reasonably fit for their intended purpose.

Practical Completion

7. Practical Completion of the Works was certified on 8 March 2024. The club opened to members on 25 March 2024.

The defects

8. In breach of the express and implied terms pleaded above, the Works were not designed and/or constructed in accordance with the Contract. The defects, which became apparent from in or about April 2024, are particularised in the Scott Schedule served with these Particulars of Claim and include, in summary:
   (d) Water ingress: the curtain-wall to roof abutment detail to the pool hall was inadequately designed and defectively installed, permitting persistent water ingress, corrosion of structural steelwork and the partial closure of the poolside;
   (e) Pool water-treatment: the filtration and dosing plant was undersized against the Employer's Requirements and incorrectly commissioned, causing repeated breaches of water-quality parameters and pool closures directed by the local authority;
   (f) Ventilation: the pool-hall air-handling installation was undersized and could not maintain humidity within the design parameters, causing condensation, mould and deterioration of finishes; and
   (g) Studio HVAC: the controls to two studios were defectively installed and the studios were unusable during summer 2024.
9. The defects are evidenced by the report of Lyle Forsyth Associates dated 18 October 2024, on which the Claimant will rely.

Loss and damage

10. By reason of the matters aforesaid the Claimant has suffered loss and damage, particularised in the Schedule of Loss served herewith and summarised as follows: cost of remedial works £1,756,900; investigation and professional fees £184,200; loss of profit from closures and reduced membership £1,310,000; and member compensation and alternative provision £168,500; total £3,419,600.
11. Further, the Claimant claims interest on such sums as are found due pursuant to section 35A of the Senior Courts Act 1981 at such rate and for such period as the Court thinks fit.

AND the Claimant claims:

(h) Damages in the sum of £3,419,600 or such other sum as the Court may find;
(i) Interest pursuant to section 35A of the Senior Courts Act 1981;
(j) Costs; and
(k) Further or other relief.

CATHERINE ROSENTHAL KC
HARRIET STANFORD
Eldon Chambers

Statement of Truth
The Claimant believes that the facts stated in these Particulars of Claim are true. I understand that proceedings for contempt of court may be brought against anyone who makes, or causes to be made, a false statement in a document verified by a statement of truth without an honest belief in its truth.

Signed: .....

Name: Nathan Reilly
Position: Director, for and on behalf of the Claimant
Dated: 12 March 2025

Served by Whitfield Carter LLP, 22 Bishopsgate, London EC2N 4BQ, solicitors for the Claimant.